

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SENEGAL

Complete Community Opposition How-To

*This guide uses the Senegalese terms and bodies you'll actually run into — the **domaine national**, the **délibération** of the **conseil municipal**, the **étude d'impact** and the **audience publique**, the **certificat de conformité environnementale**, the **recours pour excès de pouvoir** before the Supreme Court — and explains each in plain words the first time. Senegal adopted a new Environment Code in 2023, so check which implementing decrees are in force.*

INTRODUCTION & FRAMEWORK

In the wetlands of the **Ndiaël**, in Senegal's Saint-Louis region, thirty-seven villages of herders and farmers refused to be erased. In 2012 an Italian-owned agribusiness, **Senhuile**, obtained a **fifty-year lease on 20,000 hectares** — land in a forest-and-wetland reserve of international importance that was **partially declassified** to make way for the plantation — threatening some **9,000 pastoralists** who grazed 100,000 animals and lived off the reserve's firewood, fruit, and medicine. The company had already been driven from its first site, Fanaye, where in 2011 protests turned deadly and two villagers were killed. In Ndiaël it cleared land without the communities' consent. But the **37 villages** organised and would not yield: for years they resisted, occupied, and reclaimed their right to the land, backed by Senegal's land-rights network **CRAFS** and the farmers' organisation **Enda Pronat**, and by international allies who exposed the deal to the world. The company, mired in its own scandals and its collapsing credibility, buckled — and the government was forced to recognise the resistance and **cut the concession in half, from 20,000 to 10,000 hectares**, as the communities pressed to take back the reserve.

The 37 villages of the Ndiaël, backed by the land-rights network CRAFS and the farmers' organisation Enda Pronat, drew on a toolkit rooted in land and local democracy. Most rural land is **domaine national** — held by the state and **allocated by the elected municipal council (conseil municipal)** through its **délibération** — so the council's decision to grant or refuse land is a central, contestable act. A large project needs an environmental study — an **étude d'impact** (or a lighter **analyse environnementale initiale**) — reviewed by a **comité technique** after an **audience publique**, leading to a **certificat de conformité environnementale**; protest, petition, and litigation are lawful. And an unlawful decision can be annulled by the **Supreme Court** through a **recours pour excès de pouvoir**. But these tools have real limits, and this guide states them plainly. The Ndiaël win was **partial** — the reserve was damaged and declassified, and it leaned partly on the **company's own implosion** — and the deaths at Fanaye, where protests turned deadly in 2011, are a reminder that even in a democracy, land fights can turn dangerous. So aim to assert your land rights, force a real process, cut a project down, and reclaim what you can, as much as to win a single clean stop — and protect your people.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Senegalese project on rural land needs the **conseil municipal's délibération** to allocate the land; it needs its **environmental study and certificat**, tested at the **audience publique**; and an unlawful decision can be **annulled by the Supreme Court**. Every one of those is a link you can grab — and the council's land

decision is often the closest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's on domaine national land, the conseil municipal's délibération is your closest lever** — a council that refuses or reverses an allocation can stop a project, and communities can press it.
- **If the environmental study or the public hearing was defective, the certificat and the Supreme Court are real grounds.**
- **If a protected or Ramsar area is being declassified, that is a strong lever and a powerful story.**
- **If a determined foreign investor and the state are behind it, an outright stop is hard** — aim for a cut-down concession, reclaimed land, delay, and exposure, and protect your people.

Read the whole guide once before you move. Two habits run through it: **use the rights the land and the law give you** — the council, the study, the hearing, the Supreme Court — and **run every front at once**: the documents, the council, the hearing, the courts, the community, the press. That's how Ndiaël's villages clawed back their land.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

On rural land, the key decision is the **conseil municipal's délibération** allocating (**affectation**) or withdrawing (**désaffectation**) land from the **domaine national** — the elected local council holds this power, which makes it both the gateway and your lever. A large project also needs environmental clearance: an **étude d'impact** (or **analyse environnementale initiale**) reviewed by a **comité technique**, following an **audience publique**, ending in a **certificat de conformité environnementale** from the environment ministry. Protected areas (including **Ramsar** wetlands) carry protection that a project may need declassified. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The council's land decision. The conseil municipal deliberates on allocating the land. *Your opening* — *often the closest*: organise to persuade or pressure the council to refuse or reverse the allocation, and to reclaim land for the community.

The environmental study and public hearing. The developer files the study; an **audience publique** is held before the certificat. *Your opening*: take part, put your objections on the record, and attack the study's flaws.

Construction and operation. *Your opening*: breaches of the certificat, land cleared without consent, harm — reportable and challengeable.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign investor, whose reputation and finances are pressure points (Senhuile collapsed under scandal). **What it still needs** — the délibération, the certificat, financing: whatever's missing is the soft spot. **What land and protection it needs declassified** — because declassifying a reserve is both a legal target and a powerful story.

Who's Supposed to Be Watching

Each is an ally or an arena. The **conseil municipal** allocates the land — and can refuse or reverse it. The **comité technique** and the environment ministry run the certificat. The **audience publique** puts objections on the record. The **Supreme Court** can annul an unlawful decision. And Senegal's **land-rights networks (like CRAFS)**, **farmers' and pastoralists' organisations (like Enda Pronat)**, and a **free press with international reach** are the forces that reach furthest — the coalition that carried Ndiaël.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you can move the council, whether the study or hearing was defective, whether a protected area is being declassified, and how determined the investor is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Move the conseil municipal on the land	25–50%	months	low	Allocation refused or reversed; land reclaimed
Objections at the audience publique	15–35%	during study	low	On record; conditions or a redo
Recours pour excès de pouvoir (Supreme Court)	25–50%	1–3 yr	mod	Unlawful decision annulled
Protected-area / Ramsar declassification lever	30–55%	varies	low	Declassification blocked or reversed
Community mobilisation + press (incl. international)	30–55%	months–yr	low	Concession cut; company retreats
Everything together (your land, protected area, world watching)	40–65%	1–4 yr	mod	Cut down, reclaimed, delayed, exposed
Everything together (state/investor-backed)	20–45%	1–4 yr	mod	Delayed; cut down; exposed

The levers that move the needle most are the **conseil municipal's land decision**, the **protected-area/declassification** lever, and **mobilisation plus international exposure**, backed by the Supreme Court. Ndiaël shows the ceiling (a foreign land grab cut in half and clawed back) and the honest floor (a partial win leaning on the company's collapse). So aim for a cut-down concession, reclaimed land, delay, and exposure as well as an outright stop.

On cost: organising, taking part in the hearing, and pressing the council are cheap; and the council's land power is a genuinely local, reachable lever. International allies (like the Oakland Institute at Ndiaël) can expose a foreign investor to the world at little cost to you.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this délibération, this defective study, this declassification — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, and any foreign investor whose reputation you can reach.

2. Whose land is it on, and what does it touch? Establish that it's **domaine national land your community uses**, and map it over your grazing, farmland, water, forests, and any **protected or Ramsar area**. **Your customary use of domaine national land, and a protected area being declassified, are your sharpest levers.**

3. What stage is it at, and what's the next deadline? Has the conseil municipal deliberated on the land? Is an étude d'impact or audience publique under way? Has the certificat issued (opening the Supreme Court)? These openings are time-bound.

4. What does it still need that it lacks? The délibération, the certificat, a declassification, financing. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring villages, herders and farmers, the land-rights network, international allies. Ndiaël united 37 villages.

What this looks like in real life. A community learns a plantation is planned on the grazing land of many villages, in a reserve being quietly declassified, with no real consent. The five questions yield: a foreign agribusiness (and its reputation); domaine national grazing land and a Ramsar reserve at stake (the levers); a council allocation and a certificat in process; a project still needing them; and many villages to unite. That's the Ndiaël pattern — press the council, fight the declassification, and expose the investor.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the conseil municipal's délibération, the étude d'impact and the audience publique record, the certificat, any declassification decree, the lease and company records. Then read them for flaws — an allocation made without the community, a study that understated the harm or the reserve's value, a hearing that never genuinely reached the villages, a declassification of protected land.

Layer two: the ground truth. Prove your use of the land — dated, located photographs and video of your grazing, farming, water, and the reserve — plus the harm the project would do, and the testimony of affected herders and farmers.

Layer three: the map of land and protection. Lay the project over the land your villages use and any protected or Ramsar area, so your customary use and the declassification are undeniable. Walking into the council, the hearing, or the Supreme Court with the délibération, the study, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The délibération, the étude d'impact and audience publique record, the certificat, any declassification decree, the lease** — from the commune, the environment ministry, and the land services.

- **Proof of your land use** — photographs, testimony, and records of your community's grazing and farming.
- **Ownership and financing** — the company and any foreign investor.
- **The land-and-protection map** — your grazing and farmland, water, and the protected/Ramsar area, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and herders' and farmers' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a united set of villages gives you power — and Ndiaël's 37 villages are the model. Build in four moves.

Start with a tight core. The villages and herders most affected, the people who know the land, a few tireless organisers, and respected local and traditional figures.

Unite the villages, and work the council. Ndiaël's strength was 37 villages acting as one — and pressing the conseil municipal, whose land power is the local lever. Decide collectively, and bring your united voice to the council.

Bring in the networks and international allies. Reach Senegal's land-rights network **CRAFS**, farmers' organisations like **Enda Pronat**, and international allies who can expose a foreign investor to the world, as they did at Ndiaël. Hold meetings where people see the evidence.

Build to last. Senegalese fights run for years. Build clear roles, a secure shared archive, an inclusive way to decide together, and a plan for the financial and emotional toll — and, remembering Fanaye, keep action disciplined and non-violent, and protect your people.

STEP 4: LEGAL CHALLENGES, THE COUNCIL & THE COURTS

Law here works through local land democracy and the courts — and the council's land power is the closest lever.

The Conseil Municipal and the Domaine National — Your First Lever

Most rural land is **domaine national**, allocated by the elected **conseil municipal** through its **délibération**. This makes the council the gateway — and your lever. A community can press the council to **refuse or reverse** an allocation, or to allocate land back to the villages, as Ndiaël's communities pressed to reclaim the reserve. An allocation made without genuine consultation, or against the community's customary use, is also weak ground for the project. Working the council is often the most reachable, most powerful thing you can do.

The Environmental Study, the Public Hearing, and the Certificat

A large project needs an **étude d'impact** (or **analyse environnementale initiale**), reviewed by a **comité technique** after an **audience publique**, ending in a **certificat de conformité environnementale**. Take part in the hearing, put your objections on the record, and attack the study's flaws — a defective study or a sham hearing undermines the certificat.

The Supreme Court and Protected Areas

An unlawful decision — a bad allocation, a defective certificat, an unlawful **declassification** of a protected or Ramsar area — can be challenged before the **Supreme Court** by a **recours pour excès de pouvoir** (an action to annul an unlawful administrative act). The declassification of a protected reserve, as at Ndiaël, is both a strong legal target and a powerful public story.

The Honest Limits

Straight talk: the council and the courts are real levers, but a determined foreign investor and the state are hard to stop outright, and Ndiaël's win was partial and leaned on the company's collapse. So use the tools — the council, the study and hearing, the Supreme Court, the protected-area lever — pair them with the villages, the networks, and international exposure, and count a cut-down concession, reclaimed land, delay, and exposure as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Land use becomes a claim on the council. Not "we oppose the plantation" but *"this is our villages' domaine national grazing land, and we ask the council to refuse the allocation and return it to us."*

A declassification becomes a legal and public target. *"They declassified a Ramsar reserve of international importance to hand it to an agribusiness — unlawful, and a scandal."*

A defective study becomes a challenge. *"The étude d'impact understated the harm and the hearing never reached our villages — the certificat is unsound."*

The harm becomes a story that travels. *"The reserve 9,000 of us live from — cleared for a foreign agribusiness we never agreed to."*

Match it to the venue: the land to the council; the declassification and the unlawful decision to the Supreme Court; the study's flaws to the hearing and the comité technique; the human story to the press at home and abroad.

STEP 5: MEDIA STRATEGY

In Senegal, publicity — especially international — is a powerful lever, because it reaches a foreign investor's reputation and finances, as it reached Senhuile's. Land-rights networks and a free press make the media front central.

Lead with land and people. Not "the certificat was deficient" but "the reserve 9,000 of us live from, cleared for a foreign agribusiness we never agreed to." Use your strongest material: proof of your land use, dated photographs, the map of the project over your land and the reserve, and community voices.

Work several audiences at once — reach the investor. Local and national press build domestic pressure; international networks reach the foreign investor and its financiers, where a company like Senhuile is most exposed. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people and unity — keep action non-violent and disciplined (remember Fanaye), and let the villages shape the story together.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to the commune / ministry).

Subject: Demande d'information — [project].

"We, the villages of [place], request the conseil municipal's délibération, the étude d'impact and audience publique record, the certificat, any declassification decree, and the lease for [project] at [location]. [Contact.]"

8B — To the conseil municipal (the land decision).

Subject: Notre terre du domaine national — [project].

"We, the villages of [place], use this domaine national land for our grazing and farming. We ask the council to refuse [/ reverse] the allocation to [project] and to allocate the land to our communities. [Attach evidence.]"

8C — Objection at the audience publique.

Subject: Objection — audience publique de [project].

"We, the villages of [place], object to the certificat for [project]: [it clears a protected reserve; the study understated the harm; the hearing did not reach us]. We ask that the certificat be refused. [Attach evidence.]"

8D — Recours pour excès de pouvoir (to a lawyer).

Subject: Recours pour excès de pouvoir — [project].

"We instruct you to challenge, before the Supreme Court, the [allocation / certificat / declassification] for [project], on the grounds that [it was made without consultation / the study was defective / the declassification of the reserve was unlawful]. [Attach the decision and our evidence.]"

8E — To a land-rights network / farmers' organisation.

Subject: Land grab — [project] at [location].

"Our villages face [project] on our domaine national land, in a [protected/Ramsar] reserve, cleared without our consent. We've gathered [proof of use, the study, photographs]. We ask for your support and alliance, as at Ndiaël. [Contact and evidence summary.]"

8F — To a foreign investor or financier.

Subject: Land rights and legal risk in [project], Senegal.

"We are the communities affected by [project] at [location]. It clears land 9,000 of us depend on, in a protected reserve, without our consent, and faces legal challenge. As with Senhuile, this carries real reputational and legal risk. [Contact and evidence summary.]"

8G — Letter to the press (here and abroad).

Subject: Villages of [place] act to protect their land from [project].

"For generations the people of [place] have grazed and farmed [this land] in [the reserve]. Now [project], by [investor], threatens it — without our consent. We can provide proof of our use, photographs, a map and interviews. [Contact.]"

8H — Uniting the villages.

Subject: Our land, our council — let's stand as one.

"[Project] threatens our land. Our strength is our numbers — as Ndiaël's 37 villages showed — and our council's power over our domaine national land. Let's unite, press the council, and reclaim our reserve. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Establish it's your domaine national land, and unite the affected villages.** Your land use and your numbers are your levers.
2. **Press the conseil municipal to refuse or reverse the allocation (8B) — collectively.**
3. **Object at the audience publique (8C), and request the documents (8A).**
4. **Photograph everything, with dates and places — your use of the land, and any declassified reserve.**
5. **Get a lawyer for a recours before the Supreme Court (8D), especially against a declassification.**
6. **Reach the land-rights networks and international allies, and go public (8E/8F/8G).**

Even lean, those six use the council, the hearing, the courts, and international exposure — the tools that cut Senhuile down.

WHEN THE SYSTEM IS TILTED

Senegal's tools are real, but the field can be tilted, and you must plan for it.

When the state and investor are determined. Don't fold: press the council, fight the declassification, and reach the investor's reputation and finances internationally, as Ndiaël did.

When a reserve is being declassified. This is both an unlawful act to challenge in court and a scandal to expose — declassifying a Ramsar reserve for an agribusiness is a powerful story.

When the win is only partial. Ndiaël's concession was cut, not erased, and land was clawed back over years. Keep pressing to reclaim more, and keep watch.

When land fights turn dangerous. Fanaye's deaths are a warning. Keep action non-violent and disciplined, protect the vulnerable, and keep international attention on.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Senegal has real problems with opaque land deals and the closeness of investors to local and national officials, so this matters.

How to spot it. Allocations against communities' use; declassifications of protected land to suit an investor; studies written for the proponent; benefits to the connected while villages lose their land.

Who's supposed to guard against it. The **Cour des Comptes** examines public money. The **OFNAC** (anti-corruption office) handles graft. The **Supreme Court** can annul an unlawful decision. And Senegal's **land-rights networks, civil society, and press** have exposed captured deals.

How to fight it safely. Document precisely and factually — how the process was bent, whose land was taken, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Cour des Comptes, OFNAC, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the council fight and the international pressure.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; your land use and the council aim it; united villages are the muscle; the hearing and the Supreme Court press the case; the media raises the cost at home and abroad. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): establish your land use and unite the villages; press the council on the allocation; object at the audience publique; request the records; photograph your use and any declassified reserve; reach the land-rights networks and international allies.

In the thick of it (months–years): challenge an unlawful allocation, certificat, or declassification before the Supreme Court; deepen the coalition; open the media front here and abroad; keep working the council to reclaim land.

The long haul (years): carry the litigation and the campaign; hold the villages together; hold out for a cut-down concession, reclaimed land, delay, or an outright stop — and keep pressing for more.

FINAL ASSESSMENT

Stopping — or cutting down — a destructive project in Senegal can be done: 37 villages of pastoralists forced a foreign agribusiness and the state to retreat, halved its land grab, and clawed back their reserve. Hold both truths. Senegal's tools are real: rural land held as domaine national and allocated by an elected council you can press; an environmental study and public hearing you can attack; a Supreme Court that annuls unlawful decisions; and protection for reserves that a declassification puts in play. And the constraints are real: determined foreign investors, partial wins that lean on a company's own collapse, and land fights that — as Fanaye showed — can turn deadly.

Here's the discipline that wins what can be won. Start from your land: establish your villages' use of the domaine national, unite them, and press the conseil municipal to refuse the allocation and return the land. Object at the audience publique, and take an unlawful allocation, certificat, or reserve declassification to the Supreme Court. Reach the land-rights networks and the international allies who can expose a foreign investor, as Ndiaël's coalition did. Keep action disciplined and your people safe. Count a cut-down concession, reclaimed land, delay, and exposure as wins alongside an outright stop. That's what Ndiaël's villages did — the land, the council, the courts, and the world together. So can you.